



DRAFT — FOR SARAH'S REVIEW

Confidentiality & Data-Handling Agreement

OptiMind Educational Strategies — prepared by Ruby Groves, Gemini Lane

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Not legal advice. This is a planning draft prepared for internal use. It should be reviewed before signature, and Section 5 (Data-Handling Basics) is intentionally incomplete until the one-page data-handling policy on the roadmap is finalized.

This agreement is entered into between OptiMind Educational Strategies ("OptiMind") and [Employee Name] ("Employee"), effective as of [TBD — start date] .

1. Purpose

In the course of employment, Employee will have access to sensitive client and student information — including neuropsych and psycho-educational evaluations, IEPs and 504 plans, medical and mental-health information, and family history. This agreement sets the ground rules for handling it.

2. Definition of Confidential Information

- Client and family records of any kind, including intake forms, session notes, goals, and diagnostic history.
- Business information not otherwise public: referral relationships, financial information, and internal processes.
- Any other information OptiMind designates as confidential.

3. Employee Obligations

- Access client information only as needed to perform assigned duties.
- Do not share client information outside OptiMind's authorized systems and personnel.
- Store client information only in OptiMind-approved systems — confirm which those are, once the platform decision lands .
- TBD — confirm whether personal devices may be used for any client-related work, or company-issued devices only.
- Report any suspected data breach or lost/stolen device to Sarah immediately upon discovery.

4. Duration

These obligations begin on the effective date and continue after employment ends, for [TBD — confirm whether this is indefinite or a stated period] .

5. Data-Handling Basics

Governed by the separate [Data-Handling Policy](#) — what's held, where it lives, who can access it, and how long it's kept. Employee signs an acknowledgment against that policy directly; it's a draft as of this writing and still has open compliance questions of its own.

6. Return of Materials

Upon termination of employment, Employee will return or permanently delete all client files, notes, and materials in their possession, and access to OptiMind systems will be revoked.

Employee signature & date

Sarah Ritter, Founder & date

Open Questions for Sarah

1. What are the finalized data-handling specifics — approved storage locations and access controls — once decided?
2. Are personal devices allowed for any client-related work, or is it company-issued only?
3. What's the breach-reporting process beyond "tell Sarah immediately" — is there a next step (e.g., client notification, insurance carrier)?
4. Should post-employment confidentiality obligations be indefinite, or run for a stated number of years?